

25STCV32729 25STCV32729

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-10

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Case Number: 25STCV32729 Hearing Date: August 10, 2026 Dept: 512

HEARING DATE: Mon.,

August 10, 2026 JUDGE/DEPT: Mkrtchyan/512

CASE NAME: Oxlaj

Hernandez, et al. v. COMP. FILED: 11-10-25

SRAD 26, LLC, et al.

CASE

NUMBER: 25STCV32729

NOTICE: OK

PROCEEDINGS: PETITIONS

FOR APPROVAL OF COMPROMISE OF CLAIM OR ACTION OR DISPOSITION OF PROCEEDS OF
JUDGMENT FOR MINOR

MOVING PARTY: Petitioner

Vilma Ramos Pastor on behalf of minor Claimant Abigail Oxlaj-Ramos and minor

Claimant Yeni Oxlaj-Ramos

RESP. PARTY: None

PETITION TO APPROVE COMPROMISE OF A DISPUTED CLAIM

(CCP § 372, CRC, rule 7.950.5.)

TENTATIVE RULING:

The

Petitions for Approval of Compromise of Claim or Action or Disposition of
Proceeds of Judgment for Minor filed on behalf of minor Claimants Abigail Oxlaj-Ramos and Yeni
Oxlaj-Ramos are GRANTED.

The

following persons are still required to attend the hearing on the compromise of
the claim:

1. Person compromising the claim on behalf
of the minor or disabled person (CRC Rule 7.952(a))

2. The minor (id.)

On Its own motion, the Court advances and VACATES the
Trial and Final Status Conference dates. The Court schedules an Order to Show
Cause Re: Dismissal for September 2, 2026 at 8:30 a.m.

Moving

party is to give notice of ruling.

SERVICE:

[X] Proof of Service Timely
Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§
1013, 1013a) OK

[X] 16/21 Court Days Lapsed
(CCP §§ 12c, 1005(b)) OK

OPPOSITION: None filed as of August
6, 2026 [] Late [X] None

REPLY: None filed as
of August 6, 2026 [] Late [X]
None

ANALYSIS:

I.

Background

On

November 10, 2025, Plaintiffs Santos Oxlaj Hernandez, Vilma Ramos Pastor, minor Yeni Oxlaj-Ramos, and minor Abigail Oxlaj-Ramos ("Plaintiffs") filed the instant action against Defendants SRAD 26, LLC, and Lilah Management, LLC ("Defendants") and Does 1-50, alleging causes of action for Breach of Warranty and Habitability, Breach of Covenant of Quiet Enjoyment, Negligence, and Breach of Contract. (Compl., p. 1.)

On

November 14, 2025, the Court granted Pastor's applications to be appointed Guardian Ad Litem for Yeni Oxlaj-Ramos and Abigail Oxlaj-Ramos. (11/14/25 Orders.)

On

December 2, 2025, Defendants filed Answers.

On

July 15, 2026, Petitioner Pastor ("Petitioner") filed the instant Petitions for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor (the "Petitions") on behalf of Yeni Oxlaj-Ramos and Abigail Oxlaj-Ramos ("minor Claimants"). Petitioner also filed Proposed Orders.

No

Opposition to the Petitions has been filed.

II.

Legal

Standard & Discussion

Court approval is required for all settlements of a minor's claim. (Prob. Code §§ 3500, 3600, et seq.; Code of Civ. Proc., § 372.) " '[W]ithout trial court approval of the proposed compromise of the ward's claim, the settlement cannot be valid. [Citation.] [¶] Nor is the settlement binding [on the minor] until it is endorsed by the trial court.' " (Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1338.) A minor, like Claimant, "shall appear either by a

guardian or conservator of the estate or by a guardian ad litem appointed by the court in which the action or proceeding is pending, or by a judge thereof, in each case.” (Code Civ. Proc., § 372, subd. (a)(1).)

To obtain court approval of the settlement of a minor’s claims, the petitioner must file a “verified petition for approval of the settlement and must disclose ‘all information that has any bearing upon the reasonableness of the compromise.’ ” (Barnes v. Western Heritage Ins. Co. (2013) 217 Cal.App.4th 249, 256, fn. 4, citing Cal. Rules of Court, rule 7.950.)

A.

Petition
of Abigail Oxlaj-Ramos

The Court
finds the Petition and Proposed Order are substantially complete. The Court also finds that Petitioner provided timely and proper proof of service of the Petition, notice of hearing, and proposed orders. Finally, the Court finds the proposed settlement to be fair and reasonable in light of minor Claimant’s damages.

Accordingly,
the Petition is GRANTED.

B.

Petition
of Yeni Oxlaj-Ramos

The Court
finds the Petition and Proposed Order are substantially complete. The Court also finds that Petitioner provided timely and proper proof of service of the Petition, notice of hearing, and proposed orders. Finally, the Court finds the proposed settlement to be fair and reasonable in light of minor Claimant’s damages.

Accordingly,
the Petition is GRANTED.

III.

Conclusion

& Order

For

the reasons stated above, the Petitions for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor filed on behalf of minor Claimants Abigail

Oxlaj-Ramos and Yeni Oxlaj-Ramos are GRANTED.

1. Person compromising the claim on behalf
of the minor or disabled person (CRC Rule 7.952(a))

2. The minor (id.)

On

Its own motion, the Court advances and VACATES the Trial and Final Status Conference dates. The Court schedules an Order to Show Cause Re: Dismissal for September 2, 2026 at 8:30 a.m.

Moving

parties are ordered to give notice.